Roc. No. A10/608 /2022 Dated: 23.08.2023

NOTES FOR APPROVAL OF LAND VALUE BY THE STATE LEVEL PRIVATE NEGOTIATION COMMITTEE AS DETERMINED BY THE DISTRICT LEVEL PRIVATE NEGOTIATION COMMITTEE IN RESPECT OF ACQUISITION OF LANDS FOR ESTABLISHMENT OF ALLIKULAM PROJECT IN ALLIKULAM VILLAGE, OF THOOTHUKUDI TALUK AND DISTRICT.

Table – 1

District	Thoothukudi
Taluk	Thoothukudi
Village	Allikulam
Survey Numbers	21 & etc
Administrative Sanction	G.O.(Ms) No.100, Industries (SIPCOT-L.A) Dept., Dated: 26.02.2021.
Patta Lands to be acquired as per A.S G.O	92.48.50 Hectares (228.44 Acres)
Extent proposed for exemption	Nil
Final extent to be acquired	92.48.50 Hectares (228.44 Acres)
Publication of Notice u/s.3(2)	17.12.2021, 21.08.2022 (Eratta)
Publication of Notice u/s.3(1)	16.11.2022, 28.11.2022, 08.12.2022, 14.12.2022
DLPNC conducted on	24.02.2023 & 23.08.2023
Purpose	Allikulam Project, Unit – 8 (SIPCOT)
Permissible Negotiation percentage as per G.O.411 (As acquired lands are falling in rural limit)	Up to 275%

1. **Brief History of the case:**

   - The Government in their orders in G.O. No. 100, Industries (SIPCOT-L.A) Dept., dt. 26.02.2021 have accorded administrative sanction to acquire an extent of 92.48.50 Hects. In Allikulam Village, Thoothukudi Taluk, Thoothukiudi District for the Construction of Allikulam Scheme.

Table - 2

Sl.No	Name of Village	Categpry	Patta land to be acquired
1	**Allikulam**	**Pattadhar Lands** (Dry Manavari type-I)	**88.33.00 (218.175 Acres)**
		Plot (Residential Class II Type-1)	**4.15.50 (10.263 Acres)**
		Total	**92.48.50 (228.44 Acres)**

✓ The notices u/s.3(2) for an extent of 92.48.50 Hectares (228.44 acres) and 3(1) for an extent of 92.48.50 Hectares (228.44 acres) were published as per the procedures laid down under the provisions of the Tamil Nadu Acquisition of Land for Industrial Purposes Act,1997.

Table – 3

Lands proposed to be exempted

Village	Extent (Hectare)	Extent (Acre)	Remarks
Allikulam	Nil	Nil	Nil

✓ Further no poramboke lands which were not falls on this land acquisition. Finally, the details of the lands to be acquired as 92.48.50 Hectares and the Guide Line Value of those lands are as listed below:

Table – 4

Sl.No	Village	Classification of lands	Extent to be acquired		GLV as on 3(2) notice
			Hectare	Acr	
1	Allikulam	Dry Manavari type-I	88.33.00	**218.175**	Rs.2,01,215/- (per Acre)
2		Residential Class II Type-1	4.15.50	**10.263**	Rs.220/- (per Sq. mtr)
		Total	92.48.50	**228.44**	

2. **Determination of market value for the acquired Lands:**

Allikulam Village

- ✓ In order to arrive the market value, the sales statistics that took place in 1.6 km radius from the acquisition field for the period of three years prior to the date of publication of 3(2) notice have been collected and sales were gathered from Pudukottai Sub-Registrar's Office.
- ✓ As per the provisions of the RFCTLARR Act, 2013 and the guidelines issued vide this office Circular No.M2/7304/2018, dated: 16.10.2020, the market values have been worked out as follows:

Table – 5

Sl. No	Name of the Village	Classification of the lands	Extent to be acquired (in Hec)	Guideline Value (Per Hec.) (inRs.)	Average sale Value (Per Hec.) (inRs.)	Market Value (Per Hec.) (inRs.)
1	Allikulam	Dry Manavari type-I	88.33.00	4,97,000	5,00,547	5,00,547
2		Residential Class II Type-1	4.15.50	22,00,000	22,00,009	22,00,009
Total			92.48.50			

Determination of Compensation under Private Negotiation:

- ✓ Based on the above market values, DLPNC meeting was conducted by the officials with land owners on 24.02.2023 and 23.08.2023. During the meeting, since the acquisition fields are located within 30 km from Urban limit, negotiation has been made upto 275% of Market Value / Guideline Value (whichever is higher) by the DLPNC as per G.O.Ms.No.411, Revenue and Disaster Management (LA-I(1)) Department, dated: 06.08.2020. After that, additionally 25% incentive to be given for that amount.
- ✓ Apart from the above, it was assured during the DLPNC that in respect of trees and structures, those will be estimated by the Departments concerned without any depreciation along with 100% solatium and 25% incentive.
- ✓ During the DLPNC meeting, the market value of the lands, the probable compensation amount as per the Act and as per Private Negotiation, statement of

pattadars obtained during the 7(2) enquiries conducted already were discussed. Many of them have consented to give the lands if higher compensation than the actual compensation payable for them. Few of the land owners have stated that compensation to the tune of Rs.25,00,000/- per acre for group A should be given for their lands. On scrutiny of the sales deed discussion with the land owners input from the field officers like Village Administrative Officer, it is learnt that agricultural lands (Group A) with GLV of Rs. 497000/- Hectare is sold at the rate of Rs. 9,00,000/- per acre based on the purpose of purchase

- ✓ District Level Private Negotiation Committee decided to recommend common prices to all land owners in the Village irrespective of the Guideline Value.
- ✓ The acquisition extent of 88.33.00 Hectares (218.175 Acres) of agricultural lands has GLV of Rs. 4,97,000/- per hectare.
- ✓ The lands proposed or acquisition are similar in nature spread across the adjacent villages. All these lands comes under same administrative sanction.

Table 6

Allikulam Project, Sipcot, Unit - 8

District: Thoothukudi **Taluk : Thoothukudi** **Village: Allikulam**

S.No	Land Catagery As Per Guide Line Value	Guideline Value per Acre	Market Value per acre	Land Value As per Act (per Acre)	Land Value As per Private Negotiation 275% (per Acre)	Land Value As per Tentative (Rs.900000) (per Acre)	% of Hike for Guideline Value		
							Land Value As per Land Act	Land Value As per Private Negotiation	Land Value As per Tentative
1	A	201215	202651	546003	696613	900000	271%	346%	447%
2	B	890688	890692	1599941	2041270	--	269%	344%	---

- ✓ The compensation permissible for the extent of lands under various classification as per Act and as per Private Negotiation are given in the Annexure III & IV
- ✓ The values of trees will be obtained from Horticulture and 100% solatium is proposed to be given as per the guidelines in force.
- ✓ Hence, based on the above justification a flat rate of Rs. 9,00,000/- per acre may be applied to the lands with GLV of above Rs. 2 lakhs per acre i.e., GLV of Rs.497000/- per Hectare (Rs.201215/- per acre) to the extent of **88.33.00 Hectares (218.175 Acres).**

Based on that, the following decisions have been taken by the DLPNC:

a) It was decided by the DLPNC **to fix a flat rate at Rs.9.00 lakhs per acre inclusive of all components** (inclusive of 275% negotiable value + 25% incentive + Rehabilitation and Resettlement benefits under Schedule-II of RFCTLARR Act, 2013) in respect of certain categories of lands furnished in **Annexure V** for which the final compensation amount shall be less than Rs.9.00 lakhs per acre as per the provisions of RFCTLARR Act, 2013 / G.O.Ms.No.411, Revenue & Disaster Management Department, Dated: 06.08.2020.

b) And in respect of residential type lands of an extent of 4.15.5 hectare the land value to be fixed at the rate of Rs. 20,41,270/- per acre as decided in DLPNC Meeting.

The following justifications were made by the District Collector, Thoothukudi to arrive the above flat rate as mentioned in point (a) for an extent of 88.33.00 Hectares:

- The acquisition extent of 88.33.00 hectares, (218.175 acre) of agricultural lands having GLV of Rs.4,97,000/- per hectare. The lands proposed for acquisition are similar in nature spread across the adjacent villages.
- Considering the variations in GLVs among the adjacent lands and anomalies in fixation of GLVs for the acquired lands located within the close proximity, it was decided to determine a fair compensation amount for the land owners whose lands are having lesser GLV to ensure the smooth LA process.
- Based on the demands raised by the land owners and due to the opposition from the land owners, it is necessary to determine a fair compensation amount for the acquired lands irrespective of GLVs.
- To avoid futuristic expenditure in the form of LAOP cases, it has been decided to determine a fair compensation amount based on the prevailing market value for the acquired lands and to complete the land acquisition through Private Negotiation in a smooth way.

b. Further, it was decided to provide the final compensation amount as per the provisions of G.O.Ms. Ni.411, Revenue & Disaster Management Department, Dated: 06.08.2020 in respect of certain categories of lands furnished in Annexure IV for which the final compensation amount (inclusive of negotiable value + 25% incentive) shall be more than Rs. 9 lakhs as per the provisions of RFCTLARR

Act, 2013/G.O.Ms.No:411, Revenue & Disaster Management Department, Dated:06.08.2020.

c. Since, the decisions taken in point (a) and (b) are beyond the powers of DLPNC, it was decided to get the approval of Government through SLPNC.

d. Further, the values of structures / trees identified in the acquired lands through will be estimated by the Departments concerned and the same shall be given to the land owners along with 100% solatium and 25% incentive as stipulated in G.O.Ms. No:411, Revenue and Disaster Management Deaprtment, dated: 06.08.2020.

Accordingly, the final land compensation amount (excluding the compensation for Tress & Structures) shall be estimated as follows:

Table 7

Comparative Statement of Compensation Payable (Including Rehabilitation and Resettlement benefits under schedule – II, RFCTLARR Act 2013)

S.no	Total Extent		GLV Classification	GLV (In Rs.)		Sales Value (in Rs.)		Total compensation as per Act (Rs.)	Total compensation as per PN (Rs.)	Total compensation as per Flat rate
	Hect	Acre		Acre	Hect	Acre	Hect			
1	88.33.00	218.175	Dry – Manavari – Type - I	201215	497000	202651	500547	119124205	151983541	196357500

Table 8

Tentative Compensation for the Lands Not Covered Under Flat Rate

S.No	Total Extent		GLV Classification	Sales Value (in Rs)		Total compensation as per Act Decrease 33.33% for unapproved plots (Rs.)	Total compensation as per PN Decrease 33.33% for unapproved plots (Rs)
	Hect	Acre		Acre	Hect		

	4.15.50	10.263	Residential Class II Type-1 Rs.22,00,000/- per hect	890692	2200009	1,64,20,194	2,09,49,248

4. **Recommendations of DLPNC:**

The DLPNC has recommended the following points to SLPNC, to get the approval of Government **for the following:**

- ✓ **In respect of certain categories of lands for which final land compensation (as per Act / Private Negotiation) is less than Rs.9.00 lakh per acre:** To fix a flat rate at **Rs.9.00 lakhs per acre** inclusive of all components (inclusive of negotiable value + 25% incentive + **R&R** entitlements under Schedule-II of RFCTLARR Act, 2013) for an extent of **88.33.00 Hectares (218.175 acres)** as furnished in **Annexure V** for which the final compensation amount inclusive of all components shall be less than Rs.9.00 lakhs per acre as per the norms under Act / Private negotiation.
- ✓ In respect of certain categories of lands for which final land compensation is more than Rs.9 lakhs per acre. To permit the District Collector, Thoothukudi to determine the final compensation amount for an extent of 4.15.50 Hectares (10.263 acre) as furnished in Annexure – IV as per the provisions of the RFCTLARR Act 2013 (or) G.O.(Ms)No.411, Revenue and Disaster Management Department, dated: 06.08.2020 whichever is beneficial to te land owners.

- ✓ To permit the District Collector, Toothukudi to estimate the values of structures / trees identified in the lands to be acquired through concerned Departments and the same may be given to the land owners along with 100% solatium and 25% incentive as stipulated in G.O.(Ms)No.411, Revenue and Disaster Management Department, dated: 06.08.2020.

- ✓ To permit the District Collector, Thoothukudi to proceed with the process of acquisition of lands through Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement, Act 2013, for the unconsented land owners.

DLPNC Member Secretary /
District Revenue Officer, Thoothukudi

DLPNC Chairman /
District Collector,
Thoothukudi

23/8/2023

DLPNC Member / District Registrar,
Registration Department,
Thoothukudi

DLPNC Member /
Land Acquisition Officer and
Special District Revenue
Officer, SIPCOT, Thoothukudi

DLPNC Member /
District Revenue Officer, SIPCOT,
Chennai